

attorney ever representing the Defendant.

Defendant signed the Stipulation alone, without representation, and there have been no Substitutions of Attorney on her behalf filed in this case.

No documents have ever been submitted on behalf of the Defendant suggesting that she has representation.

Thus, this court does not find that Defendant was properly notified of this hearing.

Disposition

Motion is continued for 30-60 days for Plaintiff to properly serve Defendant. Plaintiff to provide notice to Defendant of next hearing date.

Plaintiff to file Order.

3. 9:00 AM CASE NUMBER: L24-04232

CASE NAME: CITIBANK N.A. VS. GINO MAYNETTO

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CITIBANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed, on January 7, 2026, a Motion to Vacate Dismissal and Enter Judgment, under Section 664.6 of the Code of Civil Procedure. The Motion is scheduled for hearing on January 27, 2026.

Notice of the Motion was served on Defendant, via mail service, on January 7, 2026.

The Motion is unopposed.

Analysis

Section 1005 of the Code of Civil Procedure requires notice for a motion hearing of at least 16 court days. January 7, 2026, doesn't pass muster at 13 court days.

Disposition

This Motion will be continued 30-60 days to give Defendant the opportunity to respond.

Plaintiff to file Order and to provide notice of next hearing.

4. 9:00 AM CASE NUMBER: L24-08569

CASE NAME: WELLS FARGO BANK, N.A. VS. ANA GUANZON